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County of Fresno
By: A. Hoffman, Deputy

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF FRESNO

AMERICAN CIVIL LIBERTIES UNION OF SOUTHERN CALIFORNIA, a non-profit corporation,

Petitioner,

v.

CITY OF FRESNO,

Respondent.

CASE NO. 24CECG01635

NOTICE OF MOTION AND MOTION FOR JUDGMENT ON VERIFIED PETITION FOR WRIT OF MANDATE AND COMPLAINT FOR INJUNCTIVE AND DECLARATORY RELIEF; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT

[Gov. Code §§ 7920.000, et seq.; Code Civ. Proc., §§ 1085, et seq.]

Date: September 18, 2024
Time: 1:30PM
Judge: Hon. Kristi Culver Kapetan
Department: 97E
Action Filed: April 22, 2024

[Filed concurrently with Declaration of Stephanie Padilla]

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE THAT on September 18, 2024 at 1:30 PM, or as soon thereafter as the matter may be heard, in Department 97E of the Fresno County Superior Court, located at 2317

NOTICE OF MOTION AND MOTION; MEMORANDUM OF POINTS AND AUTHORITIES

NOTICE OF MOTION AND MOTION

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE THAT on September 18, 2024 at 1:30PM, or as soon thereafter as the matter may be heard, in Department 97E of the Fresno County Superior Court, located at 2317 Tuolumne Street, Fresno, CA 93724, Petitioner the American Civil Liberties Union of Southern California ("ACLU") will and hereby does move, pursuant to California Code of Civil Procedure section 1085 et seq., the California Public Records Act (Gov. Code, §§ 7920.000, et seq.), and Article I, section 3 of the California Constitution, for judgment on the verified petition for writ of mandate and complaint for injunctive and declaratory relief, filed against Respondent the City of Fresno ("FRESNO").

ACLU seeks an order that FRESNO immediately comply with the Public Records Act and the California Constitution, release all records and information sought by the ACLU, and provide prospective relief. ACLU further seeks a declaratory judgment that FRESNO has failed to comply with their statutory and constitutional obligations. Upon successful resolution of this matter and pursuant to Government Code section 7923.115 and Code of Civil Procedure section 1021.5, the ACLU requests that the Court award them all attorneys' fees and costs incurred in bringing this action.

This motion is based upon this Notice of Motion and Motion; the accompanying Memorandum of Points and Authorities; the supporting declaration and exhibits filed concurrently herewith; the Verified Petition for Writ of Mandate and Complaint for Injunctive and Declaratory Relief; the other pleadings and papers on file in the above-captioned matter; any subsequent briefing; and any evidence or argument that may be requested or permitted by the Court.

Dated: July 15, 2024

Respectfully submitted,

AMERICAN CIVIL LIBERTIES UNION FOUNDATION OF NORTHERN CALIFORNIA, INC.

By: SHAYLA HARRIS

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Attorneys for Petitioner, American Civil Liberties Union of Southern California

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NOTICE OF MOTION AND MOTION; MEMORANDUM OF POINTS AND AUTHORITIES

MEMORANDUM OF POINTS AND AUTHORITIES

MEMORANDUM OF POINTS AND AUTHORITIES

INTRODUCTION

This action seeks to enforce the California Public Records Act ("PRA"), Gov. Code § 7920 et seq.[1] against the CITY OF FRESNO ("FRESNO"). Petitioner ACLU OF SOUTHERN CALIFORNIA ("ACLU") seeks non-privileged public records relating to the Fresno Police Department's use of police canines. The ACLU requested these records due to growing community concerns about FRESNO's egregious use of police canine force, and the disproportionate use of police attack dogs on communities of color. FRESNO produced a limited set of highly redacted records, but it has consistently and unequivocally refused to produce all responsive records in its possession, spurning its duties under the PRA, and violating the ACLU's statutory and constitutional rights. The public has a right to know about the conduct of police departments, officers, and their use of canines, especially when that conduct results in violence and serious physical injuries.

FRESNO's failure to comply with its legal obligations under the PRA and California Constitution harms the ACLU as well as the public. Despite the ACLU's request and attempts to obtain responsive records, FRESNO has ignored its obligations under the law. The ACLU therefore respectfully requests that the Court issue a writ of mandate compelling FRESNO to immediately produce all records responsive to the ACLU's request, including all responsive information improperly redacted, and enter judgment against FRESNO for declaratory and injunctive relief. Absent the issuance of a writ of mandate and judgment, the ACLU has no plain, speedy, or adequate remedy at law to enforce its rights under the PRA.

INTRODUCTION

This action seeks to enforce the California Public Records Act ("PRA"), Gov. Code § 7920 et seq.[1] against the CITY OF FRESNO ("FRESNO"). Petitioner ACLU OF SOUTHERN CALIFORNIA ("ACLU") seeks non-privileged public records relating to the Fresno Police Department's use of police canines. The ACLU requested these records due to growing community concerns about FRESNO's egregious use of police canine force, and the disproportionate use of police attack dogs on communities of color. FRESNO produced a limited set of highly redacted records, but it has consistently and unequivocally refused to produce all responsive records in its possession, spurning its duties under the PRA, and violating the ACLU's statutory and constitutional rights. The public has a right to know about the conduct of police departments, officers, and their use of canines, especially when that conduct results in violence and serious physical injuries.

FRESNO's failure to comply with its legal obligations under the PRA and California Constitution harms the ACLU as well as the public. Despite the ACLU's request and attempts to obtain responsive records, FRESNO has ignored its obligations under the law. The ACLU therefore respectfully requests that the Court issue a writ of mandate compelling FRESNO to immediately obtain responsive records, FRESNO has ignored its obligations under the law. The ACLU therefore respectfully requests that the Court issue a writ of mandate compelling FRESNO to immediately produce all records responsive to the ACLU's request, including all responsive information improperly redacted, and enter judgment against FRESNO for declaratory and injunctive relief. Absent the issuance of a writ of mandate and judgment, the ACLU has no plain, speedy, or adequate remedy at law to enforce its rights under the PRA.

FACTUAL BACKGROUND

A. Fresno's Use of Police Attack Dogs

Police attack dogs have been weaponized for centuries to terrorize, harass, and control people

[1] Unless otherwise specified, all future statutory references are to the California Government Code.

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FACTUAL BACKGROUND

A. Fresno's Use of Police Attack Dogs

Police attack dogs have been weaponized for centuries to terrorize, harass, and control people of color. The practice of using dogs to attack people dates back to slave patrols,[2] and that legacy carries over to our modern—and no less brutal—law enforcement practices. Today, police dogs are most often deployed against individuals who pose no serious danger to officers or to others. Most individuals seriously injured by police dogs are *unarmed*.[3] Accidental attacks also occur when police dogs get loose from their handlers, bite without instruction, and fail to release when commanded.[4] FRESNO's own canine unit is no exception: in the last decade FRESNO's police dogs have brutally attacked an innocent bystander,[5] a police officer at a routine training exercise[6], and a young child attending a police canine unit demonstration.[7]

The startling and grievous danger wrought by police attack dogs indicates an active need for public inquiry. The public must know—so that they can hold lawmakers and law enforcement officers accountable—when, where, how, and why police dogs attack members of the public.

B. ACLU's California Public Records Act Request

On March 27, 2023, the ACLU submitted a PRA request to FRESNO seeking public records to understand the scope and impact of its police canine force. (Declaration of Stephanie Padilla (hereafter "Padilla Decl.") ¶ 2; Ex. A.) As relevant to this motion, the PRA request sought the following records, all of which are "public records" under the PRA, see § 7920.530: (1) any completed use of force forms and police reports concerning police dog bite(s) and/or injur(ies); (2) any [illegible] documenting police canine bite(s) and/or injur(ies); (3) records, including reports, concerning accidental police canine bite(s) and/or injur(ies); and (4) all records relating to the report, investigation, or findings of a police canine incident involving use of force resulting in death or serious bodily injury, unreasonable or excessive force, failure to intervene against another officer using unreasonable or excessive force, dishonesty about a police canine incident, or discriminatory use or threat of police canine force. (Ex. A.)

On June 30, 2023, several weeks after making these partially responsive disclosures, FRESNO sent supplemental responses, partially in response to ACLU requests and articulating its alleged justifications for withholding records and information. (Padilla Decl. ¶ 12; Ex. G.) FRESNO stated

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[2] See e.g. Madalyn Wasilczuk, *The Racialized Violence of Police Canine Force* (2023) 111 Georgetown L. J. 1125 <https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4532414> (as of July 10, 2024); see also Bina Ahmad & Kirk Boggs, *U.S. Police Dogs Originated from Slavery—and Must Be Abolished* (Feb. 21, 2024) The Appeal <https://theappeal.org/police-dogs-originated-from-slavery-and-must-be-abolished/> (as of July 10, 2024).

[3] ACLU California Action, *Weaponizing Dogs: The Brutal and Outdated Practice of Police Attack Dogs* (Jan. 2024) <https://aclucalaction.org/wp-content/uploads/2024/01/ACLUReport_Weaponizing-Dogs_1.10.2024.pdf> (as of July 10, 2024) page 4 (hereafter *Weaponizing Dogs*).

[4] *Id.* at 18, 22-23.

[5] ABC30, *Fresno Police K9 Attacks Innocent Bystander* (May 20, 2015) <https://abc30.com/hanby-sol-jerry-dyer-k-9-attack/733733/> (as of July 10, 2024).

[6] ABC30, *Fresno Police K9 Fatally Shot After Biting Officer* (January 4, 2022) <https://abc30.com/fresno-police-k9-killed-officer-shot-odin-department/11425605/> (as of July 10, 2024).

[7] *Weaponizing Dogs*, *supra*, <https://aclucalaction.org/wp-content/uploads/2024/01/ACLUReport_Weaponizing-Dogs_1.10.2024.pdf> at page 19.

[2] See e.g. Madalyn Wasilczuk, The Racialized Violence of Police Canine Force (2023) 111 Georgetown L. J. 1125.

Requests Nos. 10-12 and it will not be supplementing those responses. . . . [and] will now consider the ACLU's March 27, 2023, CPRA requests to the Fresno Police Department closed." (Ex. K at p. 3.)

ARGUMENT

The PRA and California Constitution require prompt disclosure of all non-exempt public records responsive to a records request. Despite these mandatory, non-discretionary rules, FRESNO has refused to produce all responsive records, asserting a series of unfounded blanket exemptions. No exemptions justify FRESNO's redactions or its withholding of records responsive to ACLU's request. First, the records do not fall under the PRA's "catch-all" exemption, because the public's interest weighs heavily in favor of disclosure. The Fresno community and the people of California deserve to know the extent of the damage done by FRESNO's police canines. Second, the records are not exempt from disclosure under federal or state law, and FRESNO must therefore disclose them.

A. The PRA and the California Constitution Require Prompt Disclosure of All Non-exempt Public Records.

The PRA and the California Constitution create a presumptive right of access to public records. (*City of San Jose v. Super. Ct.* (2017) 2 Cal.5th 608, 616.) The PRA thus evinces "a strong policy in favor of disclosure of public records." (*Cal. State Univ. v. Super. Ct.* (2001) 90 Cal.App.4th 810, 831.) The Constitution further requires that any "statute, court rule, or other authority," such as the PRA, "be broadly construed if it furthers the people's right of access, and narrowly construed if it limits the right of access." (Cal. Const., art. I, § 3, subd. (b), par. (2).) Therefore, the public's right to disclosure must be construed "broadly" and exemptions to disclosure must be construed "narrowly." (*See County of L.A. v. Super. Ct.* (2012) 211 Cal.App.4th 57, 60, as modified Dec. 3, 2012.)

Because public records are presumed open to the public, the government "bears the burden of proving that one or more [exemptions] apply in a particular case." (*County of L.A. v. Super. Ct.*, *supra*, 211 Cal.App.4th at p. 63, internal quotation and citation omitted.) To do so, it must demonstrate a "clear overbalance on the side of confidentiality." (*City of San Jose v. Super. Ct.* (1999) 74 Cal.App.4th 1008, 1018, internal quotation and citation omitted.)

The burden is on the agency to justify its claimed grounds for withholding potentially responsive records. "Conclusory or boilerplate assertions that merely recite statutory standards are not sufficient." (*ACLU of Northern Cal. v. Super. Ct.* (2011) 202 Cal.App.4th 55, 83.) The government must disclose all requested records unless it can prove that the records fall into 1) an exemption listed in the PRA, or 2) the PRA's "catch-all" exemption, which requires the government to demonstrate that

211 Cal.App.4th at p. 63, internal quotation and citation omitted.) To do so, it must demonstrate a "clear overbalance on the side of confidentiality." (*City of San Jose v. Super. Ct.* (1999) 74 Cal.App.4th 1008, 1018, internal quotation and citation omitted.) The government must disclose all requested records unless it can prove that the records fall into 1) an exemption listed in the PRA, or 2) the PRA's "catch-all" exemption, which requires the government to demonstrate that "the public interest served by not disclosing the records clearly outweighs the public interest served by disclosure of the record." (§ 7922.000.) If a requested record contains both exempt and non-exempt material, the government must disclose the reasonably segregable non-exempt material. (§ 7922.525, subd. (b).)

The burden is on the agency to justify its claimed grounds for withholding potentially responsive records. "Conclusory or boilerplate assertions that merely recite statutory standards are not sufficient." (*ACLU of Northern Cal. v. Super. Ct.* (2011) 202 Cal.App.4th 55, 83.) This requirement also applies to records an agency seeks to withhold as "nonresponsive." (*Id.* at 86 [requiring an agency to "explain the claim [of nonresponsiveness] in the same detail needed to justify other grounds for withholding public records"].) Therefore, absent a specific, factual showing, FRESNO cannot satisfy its burden of establishing that records are nonresponsive or exempt from disclosure.

The PRA provides that a person may seek injunctive or declaratory relief or seek a writ of mandate to enforce the right to access any non-exempt public record and that a court shall order disclosure where records are being improperly withheld. (§§ 7923.000, 7923.100. See also Code Civ. Proc., §§ 1085 et seq.) The PRA requires courts to proceed "with the object of securing a decision as to the matters at issue at the earliest possible time." (§ 7923.005.)

B. The PRA's "Catch All" Exemption Does Not Apply to FRESNO'S Police Canine Records.

The PRA's "catch-all" exemption authorizes an agency to withhold responsive records only if it demonstrates "that on the facts of the particular case the public interest served by not disclosing the records clearly outweighs the public interest served by disclosure." (§ 7922.000.) This exemption, like all others, must be construed narrowly. (*City of Hemet v. Super. Ct.* (1995) 37 Cal.App.4th 1411, 1425.)

As explained by the Court of Appeals in *Fredericks v. Super. Ct.*:

> If the records sought pertain to the conduct of the people's business there is a public interest in disclosure. The weight of that interest is proportionate to the gravity of governmental tasks sought to be illuminated and the directness with which the disclosure will serve to illuminate. The existence and weight of this public interest are

Dated: July 15, 2024

Respectfully submitted,

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Respectfully submitted,

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NOTICE OF MOTION AND MOTION; MEMORANDUM OF POINTS AND AUTHORITIES